

**SUBSTITUTE FOR
SENATE BILL NO. 586**

A bill to amend 1998 PA 386, entitled
"Estates and protected individuals code,"
by amending sections 5306 and 5314 (MCL 700.5306 and 700.5314),
section 5306 as amended by 2019 PA 170 and section 5314 as amended
by 2024 PA 1, and by adding section 5306b.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 5306. (1) The court may appoint a guardian if the court
2 finds by clear and convincing evidence both that the individual for
3 whom a guardian is sought is an incapacitated individual and that
4 the appointment is necessary as a means of providing continuing
5 care and supervision of the incapacitated individual, with each
6 finding supported separately on the record. Alternately, the court
7 may dismiss the proceeding or enter another appropriate order.



1 (2) The court shall grant a guardian only those powers and
2 only for that period of time as is necessary to provide for the
3 demonstrated need of the incapacitated individual. **The court shall**
4 **not grant the guardian the authority to change the incapacitated**
5 **individual's residence except as provided in section 5306b.** The
6 court shall design the guardianship to encourage the development of
7 maximum self-reliance and independence in the individual. If the
8 court is aware that an individual has executed a patient advocate
9 designation under section 5506, the court shall not grant a
10 guardian any of the same powers that are held by the patient
11 advocate. A court order establishing a guardianship shall specify
12 any limitations on the guardian's powers and any time limits on the
13 guardianship.

14 (3) If the court finds by clear and convincing evidence that
15 an individual is incapacitated and lacks the capacity to do some,
16 but not all, of the tasks necessary to care for himself or herself,
17 the court may appoint a limited guardian to provide guardianship
18 services to the individual, but the court shall not appoint a full
19 guardian.

20 (4) If the court finds by clear and convincing evidence that
21 the individual is incapacitated and is totally without capacity to
22 care for himself or herself, the court shall specify that finding
23 of fact in an order and may appoint a full guardian.

24 (5) If an individual executed a patient advocate designation
25 under section 5506 before the time the court determines that ~~he or~~
26 ~~she~~ **the individual** became a legally incapacitated individual, a
27 guardian does not have and shall not exercise the power or duty of
28 making medical or mental health treatment decisions that the
29 patient advocate is designated to make. If, however, a petition for



1 guardianship or for modification under section 5310 alleges and the
2 court finds that the patient advocate designation was not executed
3 in compliance with section 5506, that the patient advocate is not
4 complying with the terms of the designation or with the applicable
5 provisions of sections 5506 to 5515, or that the patient advocate
6 is not acting consistent with the ward's best interests, the court
7 may modify the guardianship's terms to grant those powers to the
8 guardian.

9 (6) If the court finds by clear and convincing evidence that
10 the individual is incapacitated, that the person that has the care
11 and custody of the incapacitated individual denied another person
12 access to the incapacitated individual, and that the incapacitated
13 individual desires contact with the other person or that contact
14 with the other person is in the incapacitated individual's best
15 interest, the court may appoint a limited guardian to supervise
16 access with the other person.

17 **Sec. 5306b. (1) A legally incapacitated individual has the**
18 **right, if possible, to remain in the individual's own surroundings,**
19 **or, if not possible, in the least restrictive environment suitable**
20 **to the individual's unique needs, abilities, and resources.**

21 **(2) Except as otherwise provided in this section, before**
22 **moving a legally incapacitated individual from the individual's**
23 **permanent residence, a guardian must file a petition that includes**
24 **all the following information on a form created by the state court**
25 **administrative office or in a substantially similar form:**

26 **(a) The individual's permanent residence.**

27 **(b) The proposed new residence.**

28 **(c) The reason for the proposed move.**

29 **(d) Whether the move is to the least restrictive environment**



1 suitable to the individual's unique needs, abilities, and
2 resources, including consideration of any potential for harm and
3 the individual's rights under section 5306a.

4 (e) How the move will impact the individual's ability to
5 continue to participate in the individual's community activities
6 and personal relationships.

7 (f) The efforts made or resources explored to enable the
8 individual to remain in the individual's own current residence,
9 including but not limited to home and community based services,
10 physical and occupational therapy, and available home
11 modifications.

12 (g) How the guardian has communicated with the individual
13 about the proposed move and whether the individual objects to or
14 supports the proposed move.

15 (3) If a petition for moving the legally incapacitated
16 individual is filed under section 5305, the court must appoint a
17 guardian ad litem and hold a hearing not later than 28 days after
18 the petition is filed. The guardian ad litem must, in addition to
19 the other duties set forth in 5305, do all of the following:

20 (a) Advise the individual that a petition has been filed to
21 move the individual from the individual's permanent residence.

22 (b) Explain that if the court grants the petition to move the
23 individual, the guardian will have the authority to change the
24 individual's permanent residence to the location specified in the
25 petition or another location the court determines is appropriate.

26 (c) Determine, if possible, the wishes of the individual to
27 remain in the individual's permanent residence and whether the
28 individual objects.

29 (d) Include this information in the guardian ad litem's



1 written report.

2 (4) If the individual does not already have retained legal
3 counsel, the court must appoint legal counsel if the individual
4 objects to the move, if the guardian ad litem recommends
5 appointment of legal counsel, or if the court determines
6 appointment of legal counsel is appropriate.

7 (5) The court shall not grant a petition for removal from the
8 permanent residence filed under subsection (2) unless the court,
9 after a hearing, finds by clear and convincing evidence that all of
10 the following apply:

11 (a) The move will appropriately protect the individual's
12 physical health, safety, or welfare.

13 (b) The move is to the least restrictive environment suitable
14 to the individual's unique needs, abilities, and resources,
15 including consideration of any potential for harm and the
16 individual's rights under section 5306a.

17 (c) If the individual does not consent to the move, there is
18 no reasonable or appropriate way to provide similar benefits for
19 the individual in the individual's permanent residence through use
20 of home and community based services, physical or occupational
21 therapy, available home modifications, or other means.

22 (d) The move will allow the legally incapacitated individual
23 the greatest opportunity to continue to be involved in the
24 individual's community activities and personal relationships.

25 (e) The move is not being arranged solely or primarily for the
26 convenience of the guardian.

27 (6) If the court finds based on clear and convincing evidence
28 that a location other than the permanent residence or proposed new
29 residence meets the criteria of subsection (5), the court may order



1 that the guardian move the individual to a location that meets the
2 criteria of subsection (5).

3 (7) A guardian may move a legally incapacitated individual
4 before a petition filed under subsection (2) if either of the
5 following applies:

6 (a) The court previously granted the guardian authority to
7 move the legally incapacitated individual based on a hearing on the
8 record consistent with subsection (5) including findings of fact on
9 the record when the court appointed the guardian on an initial or
10 subsequent petition.

11 (b) An emergency condition exists, including, without
12 limitation, an emergency that presents a risk of serious harm to
13 the safety of the legally incapacitated individual.

14 (8) If a guardian moves a legally incapacitated individual
15 under subsection (7), the guardian must take all reasonable steps
16 to preserve the individual's permanent residence.

17 (9) If a guardian moves a legally incapacitated individual
18 under subsection (7), the guardian shall notify the court not later
19 than 14 days after the move of the ward's temporary place of
20 residence.

21 (10) If a guardian determines that following a temporary
22 absence from the permanent residence, for reasons including but not
23 limited to an emergency, travel, short term rehabilitation, or
24 hospitalization the legally incapacitated individual will not
25 return to their permanent residence, the guardian must file a
26 petition under subsection (2).

27 (11) The court shall order a review of the placement at a time
28 and date set by the court if the legally incapacitated individual's
29 circumstances and resources are expected to change such that the



1 current permanent residence may no longer be the least restrictive
2 environment suitable to the legally incapacitated individual's
3 unique needs, abilities, and resources.

4 (12) A guardian shall file a petition under subsection (2) if
5 any of the following apply:

6 (a) The legally incapacitated individual's circumstances and
7 resources change.

8 (b) The changes support moving an individual to the new
9 permanent residence.

10 (c) The move is to the least restrictive environment suitable
11 to the legally incapacitated individual's unique needs, abilities,
12 and resources, including consideration of any potential for harm
13 and the individual's rights under section 5306a.

14 (d) The move is not being arranged solely or primarily for the
15 convenience of the guardian.

16 (e) If removal from the permanent residence requires the sale,
17 transfer, or disposal of real property or personal property, the
18 guardian has made reasonable efforts to communicate with the
19 legally incapacitated individual and the individual's loved ones to
20 identify and honor the legally incapacitated individual's wishes to
21 preserve sentimental personal property in the overall context of
22 the legally incapacitated individual's values, wishes, and
23 resources. The court may remove a guardian that fails to comply
24 with this subsection.

25 (13) As used in this section, "individual's permanent
26 residence" means the individual's true, fixed, and permanent home
27 to which, whenever absent, the individual intends to return.

28 Sec. 5314. If meaningful communication is possible, a legally
29 incapacitated individual's guardian shall consult with the legally



1 incapacitated individual before making a major decision affecting
2 the legally incapacitated individual. To the extent a guardian of a
3 legally incapacitated individual is granted powers by the court
4 under section 5306, the guardian is responsible for the ward's
5 care, custody, and control, but is not liable to third persons
6 because of that responsibility for the ward's acts. In particular
7 and without qualifying the previous sentences, a guardian has all
8 of the following powers and duties, to the extent granted by court
9 order:

10 (a) ~~The~~ **Subject to section 5306b, the** custody of the person of
11 the ward and the power to establish the ward's place of residence
12 in or outside this state. The guardian shall visit the ward ~~within~~
13 **not later than** 3 months after the guardian's appointment and not
14 less than once within 3 months after each previous visit. ~~The~~
15 ~~guardian shall notify the court within 14 days of a change in the~~
16 ~~ward's place of residence or a change in the guardian's place of~~
17 ~~residence.~~

18 (b) If entitled to custody of the ward, the duty to make
19 provision for the ward's care, comfort, and maintenance and, when
20 appropriate, arrange for the ward's training and education. The
21 guardian shall secure services to restore the ward to the best
22 possible state of mental and physical well-being so that the ward
23 can return to self-management at the earliest possible time.
24 Without regard to custodial rights of the ward's person, the
25 guardian shall take reasonable care of the ward's clothing,
26 furniture, vehicles, and other personal effects and commence a
27 protective proceeding if the ward's other property needs
28 protection. If a guardian commences a protective proceeding because
29 the guardian believes that it is in the ward's best interest to



1 sell or otherwise dispose of the ward's real property or interest
2 in real property, the court may appoint the guardian as special
3 conservator and authorize the special conservator to proceed under
4 section 5423(3). A guardian shall not otherwise sell the ward's
5 real property or interest in real property.

6 (c) The power to give the consent or approval that is
7 necessary to enable the ward to receive medical, mental health, or
8 other professional care, counsel, treatment, or service. However, a
9 guardian does not have and shall not exercise the power to give the
10 consent to or approval for inpatient hospitalization unless the
11 court expressly grants the power in its order. If the ward objects
12 or actively refuses mental health treatment, the guardian or any
13 other interested person must follow the procedures provided in
14 chapter 4 of the mental health code, 1974 PA 258, MCL 330.1400 to
15 330.1490, to petition the court for an order to provide involuntary
16 mental health treatment. The power of a guardian to execute a do-
17 not-resuscitate order under subdivision (d), execute a nonopioid
18 directive form under subdivision (f), or execute a physician orders
19 for scope of treatment form under subdivision (g) does not affect
20 or limit the power of a guardian to consent to a physician's order
21 to withhold resuscitative measures in a hospital. As used in this
22 subdivision, "involuntary mental health treatment" means that term
23 as defined in section 400 of the mental health code, 1974 PA 258,
24 MCL 330.1400.

25 (d) The power to execute, reaffirm, and revoke a do-not-
26 resuscitate order on behalf of a ward. However, a guardian shall
27 not execute a do-not-resuscitate order unless the guardian does all
28 of the following:

29 (i) Not more than 14 days before executing the do-not-



1 resuscitate order, visits the ward and, if meaningful communication
2 is possible, consults with the ward about executing the do-not-
3 resuscitate order.

4 (ii) Consults directly with the ward's attending physician as
5 to the specific medical indications that warrant the do-not-
6 resuscitate order.

7 (e) If a guardian executes a do-not-resuscitate order under
8 subdivision (d), not less than annually after the do-not-
9 resuscitate order is first executed, the duty to do all of the
10 following:

11 (i) Visit the ward and, if meaningful communication is
12 possible, consult with the ward about reaffirming the do-not-
13 resuscitate order.

14 (ii) Consult directly with the ward's attending physician as to
15 specific medical indications that may warrant reaffirming the do-
16 not-resuscitate order.

17 (f) The power to execute, reaffirm, and revoke a nonopioid
18 directive form on behalf of a ward.

19 (g) The power to execute, reaffirm, and revoke a physician
20 orders for scope of treatment form on behalf of a ward. However, a
21 guardian shall not execute a physician orders for scope of
22 treatment form unless the guardian does all of the following:

23 (i) Not more than 14 days before executing the physician orders
24 for scope of treatment form, visits the ward and, if meaningful
25 communication is possible, consults with the ward about executing
26 the physician orders for scope of treatment form.

27 (ii) Consults directly with the ward's attending physician as
28 to the specific medical indications that warrant the physician
29 orders for scope of treatment form.



1 (h) If a guardian executes a physician orders for scope of
2 treatment form under subdivision (g), not less than annually after
3 the physician orders for scope of treatment form is first executed,
4 the duty to do all of the following:

5 (i) Visit the ward and, if meaningful communication is
6 possible, consult with the ward about reaffirming the physician
7 orders for scope of treatment form.

8 (ii) Consult directly with the ward's attending physician as to
9 specific medical indications that may warrant reaffirming the
10 physician orders for scope of treatment form.

11 (i) If a conservator for the ward's estate is not appointed,
12 the power to do any of the following:

13 (i) Institute a proceeding to compel a person under a duty to
14 support the ward or to pay money for the ward's welfare to perform
15 that duty.

16 (ii) Receive money and tangible property deliverable to the
17 ward and apply the money and property for the ward's support, care,
18 and education. The guardian shall not use money from the ward's
19 estate for room and board that the guardian or the guardian's
20 spouse, parent, or child have furnished the ward unless a charge
21 for the service is approved by court order made on notice to at
22 least 1 of the ward's next of kin, if notice is possible. The
23 guardian shall exercise care to conserve any excess for the ward's
24 needs.

25 (j) The duty to report the condition of the ward and the
26 ward's estate that is subject to the guardian's possession or
27 control, as required by the court, but not less often than
28 annually. The guardian shall also serve the report required under
29 this subdivision on the ward and interested persons as specified in



1 the Michigan court rules. A report under this subdivision must
2 contain all of the following:

3 (i) The ward's current mental, physical, and social condition.

4 (ii) Improvement or deterioration in the ward's mental,
5 physical, and social condition that occurred during the past year.

6 (iii) The ward's present living arrangement and changes in the
7 ward's living arrangement that occurred during the past year.

8 (iv) Whether the guardian recommends a more suitable living
9 arrangement for the ward.

10 (v) Medical treatment, including mental health treatment,
11 received by the ward.

12 (vi) Whether the guardian has executed, reaffirmed, or revoked
13 a do-not-resuscitate order on behalf of the ward during the past
14 year.

15 (vii) Whether the guardian has executed, reaffirmed, or revoked
16 a nonopioid directive form on behalf of the ward during the past
17 year.

18 (viii) Whether the guardian has executed, reaffirmed, or revoked
19 a physician orders for scope of treatment form on behalf of the
20 ward during the past year.

21 (ix) Services received by the ward.

22 (x) A list of the guardian's visits with, and activities on
23 behalf of, the ward.

24 (xi) A recommendation as to the need for continued
25 guardianship.

26 (xii) If a standby guardian has been designated, a statement
27 signed by the standby guardian that the standby guardian continues
28 to be willing to serve in the event of the unavailability, death,
29 incapacity, or resignation of the guardian.



1 (k) If a conservator is appointed, the duty to pay to the
2 conservator, for management as provided in this act, the amount of
3 the ward's estate received by the guardian in excess of the amount
4 the guardian expends for the ward's current support, care, and
5 education. The guardian shall account to the conservator for the
6 amount expended.